

DESIGN SERVICES AGREEMENT

This Design Services Agreement (the "Agreement") is entered into as of 12 March 2026 (the "Effective Date") by and between Northgate Retail Group, Inc., a Delaware corporation with offices at 400 Commerce Way, Wilmington, DE ("Client"), and the undersigned individual designer ("Contractor").

1. Services

Contractor shall provide brand identity design services, including logo design, colour and typography systems, and application of the identity across packaging and signage templates, as further described in Schedule A (the "Services"). Contractor shall perform the Services in a professional and workmanlike manner consistent with prevailing industry standards.

2. Deliverables and Revisions

Contractor shall deliver initial concepts within fourteen (14) days of the Effective Date. Contractor shall provide revisions until Client is fully satisfied with the deliverables. Client shall be the sole judge of whether the deliverables meet the standard of satisfaction required under this Section.

Client may request changes to the scope, direction, or specification of the Services at any time. Contractor shall accommodate such changes within the original fee unless the parties agree otherwise in writing.

3. Intellectual Property

All work product, including preliminary concepts, sketches, and materials created by Contractor prior to the Effective Date, shall become the sole and exclusive property of Client upon creation. Contractor hereby assigns to Client all copyright, trademark, and other intellectual property rights in such work product, and waives any moral rights therein to the fullest extent permitted by law.

Contractor shall execute any further documents reasonably requested by Client to perfect the assignment described in this Section.

4. Fees and Payment

Client shall pay Contractor a fixed fee of eight thousand dollars (\$8,000) for the Services. Payment shall be due within ninety (90) days of Client's acceptance of the final deliverables.

Contractor shall bear all costs of software, fonts, stock imagery, and other materials required to perform the Services. No expenses shall be reimbursed unless approved in advance in writing by Client.

5. Term and Termination

Client may terminate this Agreement at any time, for any reason or no reason, upon written notice, and shall have no obligation to pay for work in progress. Upon termination, Contractor shall immediately deliver to Client all work product, whether complete or incomplete.

6. Indemnification

Contractor shall indemnify, defend, and hold harmless Client against any and all claims, damages, and expenses of any kind whatsoever arising from the Services, without limitation as to amount. This obligation shall survive the termination of this Agreement.

7. Restrictive Covenant

For a period of twenty-four (24) months following termination, Contractor shall not provide design services to any business operating in the Client's industry. Contractor acknowledges that this restriction is reasonable and necessary to protect Client's legitimate business interests.

8. Confidentiality

Contractor shall keep confidential all non-public information disclosed by Client in connection with the Services, and shall not use such information for any purpose other than performance of the Services. This obligation survives for three (3) years following termination.

9. Governing Law

This Agreement shall be governed by the laws of the State of Delaware, without regard to its conflict of laws principles. Any dispute shall be resolved in the state or federal courts located in Wilmington, Delaware.

Client Responsibilities

Client shall provide Contractor with all information, assets, approvals, and access reasonably required to perform the Services, within the timeframes agreed between the parties. Client shall designate a single point of contact authorised to give feedback and approvals on its behalf. Where Client fails to provide required materials or approvals within five (5) business days of a written request, the delivery schedule shall be extended by an equivalent period.

Independent Contractor Status

Contractor is an independent contractor and not an employee, partner, or agent of Client. Contractor is responsible for all taxes, insurance, and statutory contributions arising from payments under this Agreement. Nothing in this Agreement creates an employment relationship between the parties, and Contractor shall have no authority to bind Client to any obligation.

Contractor shall determine the method, details, and means of performing the Services, and may perform them at such times and locations as Contractor considers appropriate, provided that agreed deadlines and any scheduled meetings or attendances are met.

Subcontracting and Assignment

Contractor shall not subcontract any material part of the Services without Client's prior written consent. Where consent is given, Contractor remains responsible for the acts and omissions of any subcontractor. Neither party may assign this Agreement without the written consent of the other, such consent not to be unreasonably withheld.

Force Majeure

Neither party shall be liable for any failure or delay in performance caused by events beyond its reasonable control, including natural disaster, serious illness, war, civil unrest, epidemic, governmental action, or failure of public infrastructure or communications networks. The affected party shall notify the other promptly and shall use reasonable efforts to resume performance.

Waiver

No failure or delay by either party in exercising any right under this Agreement constitutes a waiver of that right, and no single or partial exercise of any right prevents any further exercise of it or of any other right. A waiver is effective only if given in writing.

Entire Agreement

This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior discussions, proposals, and understandings, whether written or oral. Any amendment must be in writing and signed by both parties.

Severability

If any provision of this Agreement is held to be unenforceable, that provision shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall continue in full force and effect.

Notices

All notices under this Agreement shall be given in writing by email to the addresses set out above, and shall be deemed received on the next business day following transmission.

Signatures

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date first written above.

Client

Contractor